23 November 2022

AGREEMENT FOR THE SHARING OF DATA

between

THE MAYOR AND BURGESSES OF
THE LONDON BOROUGH OF CAMDEN

and

THE MAYORS OFFICE FOR POLICING AND CRIME

CONTROLLER TO CONTROLLER DATA SHARING AGREEMENT

London Borough of Camden
Legal Services Department
Town Hall
Judd Street
London WC1H 9LP

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This agreement (the "**Agreement**") is made 2020

Parties

(1) **THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF CAMDEN** of Town Hall, Judd Street, London WC1H 9JE ("the Council"); and

(2) Mayor's Office for Policing and Crime (MOPAC) whose registered office is at 169 Union Street, Southwark, London SE1 0LL. ("Provider").

Each referred to as a "Party" and together the "Parties".

BACKGROUND

A. The following agreement between the Parties reflects the arrangements that they have agreed to put in place between LB Camden, on behalf of the London Resettlement Partnership (LRP) and the Mayor's Office for Policing and Crime (MOPAC) who are evaluating the LRP Pathfinder.

B. The Parties are data controllers and this Agreement explains the purposes for which the Personal Data may be used.

C. As such, the Parties agree to share the Personal Data with each other on the terms set out in this Agreement.

1. INTERPRETATION

Definitions

"**Agreed Purpose**s" shall mean the agreed purposes for sharing the Personal Data, as detailed in the Schedule;

"**Controller**" shall have the same meaning as set out in the DPA 2018/UK GDPR and for the purposes of this Agreement both Parties shall be Controllers as further detailed in the Schedule of Processing, Personal Data and Data Subjects;

"Data Discloser" shall mean the Party that discloses data to the other Party to this Agreement;

"Data Loss Event" shall mean any event that results, or may result, in unauthorised access to Personal Data held by the Contractor under this Agreement, and/or actual or potential loss and/or destruction of Personal Data in breach of this Agreement, including any Personal Data Breach;

"DPA 2018" shall mean the Data Protection Act 2018;

"Data Protection Impact Assessment" shall mean an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data;

"Data Protection Legislation" shall have the meaning ascribed to it by Data Protection Act 2018 section 3(9):

"Data Protection Officer" shall have the same meaning as set out in the DPA 2018/UK GDPR and for the purposes of this Agreement shall be identified in the Schedule of Processing, Personal Data and Data Subjects;

"Data Subject" shall have the same meaning as set out in the DPA 2018/UK GDPR and for the purposes of this Agreement shall be identified in the Schedule of Processing, Personal Data and Data Subjects;

"Data Subject Access Request" shall mean a request made by, or on behalf of, a Data Subject in accordance with rights granted pursuant to the Data Protection Legislation to access their Personal Data;

"DPA 2018" Data Protection Act 2018

"UK GDPR" shall mean the UK implemented General Data Protection Regulation (Regulation (EU) 2016/679);

"ICO" shall mean the Information Commissioner's Office in the United Kingdom;

"Law" shall mean any law, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, bye-law, regulation, order, regulatory policy, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements with which the Contractor is bound to comply;

"Personal Data" shall have the same meaning as set out in Section 3(2) of the Data Protection Act 2018 and for the purposes of this Contract shall be identified in the Schedule of Processing, Personal Data and Data Subjects;

"Personal Data Breach" shall have the same meaning as set out in the UK GDPR and includes but is not limited to the exposure or potential or possible exposure of data including but not limited to Personal Data to any third parties to the Contract or those who have neither a contractual nor statutory right of access to the data including any circumstances in which such exposure or possible exposure would constitute a breach of the provisions of the Data Protection Legislation;

"**Process**" has the meaning given to it under the Data Protection Legislation and for the purposes of this Agreement, the processing activities taking place are described in the Schedule of Processing, Personal Data and Data Subjects;

"**Processor**" shall have the same meaning as set out in the DPA 2018/UK GDPR;

"Protective Measures" shall mean the appropriate technical and organisational measures which may include: pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the such measures adopted by it;

"Schedule" means the Schedule of Processing, Personal Data and Data Subjects;

"Staff" shall mean all directors, officers, employees, agents, consultants and contractors of the Contractor and/or of any Sub-processor engaged in the performance of its obligations under this Agreement;

"Sub-processor" shall mean any third party appointed to process Personal Data on behalf of the Contractor related to this Agreement.

"Term" shall mean the duration of this Agreement as detailed in the Schedule.

2. PURPOSE

2.1 This Agreement sets out the framework for the sharing of **Personal Data** between the Parties as **Data Controllers** and defines the principles and procedures that the Parties shall adhere to and the responsibilities the Parties owe to each other.

2.2 The Personal Data subject to this Agreement is listed within the Schedule.

2.3 The sharing of Personal Data is necessary to support the Agreed Purposes as listed within the Schedule.

2.4 It is recognised that there are significant benefits to the Parties of having access to the Shared Personal Data to achieve the Agreed Purposes.

2.5 This Agreement is required to ensure that where Personal Data may be accessed, such access will at all times comply with the Data Protection Legislation.

3. COMPLIANCE

3.1 The Parties agree that this Agreement formalises the lawful transfer of the Personal Data between the Parties and presents no new or additional privacy concerns.

3.2 A data protection impact assessment has been conducted in respect of the Personal Data to be shared and the necessity of the sharing and this Agreement serves to address any residual privacy or information risks and documents the actions taken to identify, address and mitigate those risks wherever possible.

3.3 The Parties shall not process the Personal Data in a way that is incompatible with the Agreed Purposes.

3.4 As Data Controllers, the Parties remain responsible for ensuring that all uses of the Personal Data are in compliance with all applicable Data Protection Legislation.

3.5 This Agreement must be formally approved and signed by the Parties before any Personal Data is shared by persons with authority to do so on behalf of their organisation. All Parties will ensure that the terms of this Agreement are known and understood by all Staff involved in the sharing of the Personal Data.

3.6 Each Party is registered with the ICO has a valid Data Protection Registration Number with its national Data Protection Authority if required by the Enterprise Act 2017 which by the time that the data sharing is expected to commence, covers the intended data sharing pursuant to this Agreement.

3.7 The Council's ICO registration number is Z5948361 and the Provider's ICO registration number is Z2972789.

4. PERSONAL DATA

4.1 The Parties shall, in relation to any of the Personal Data processed in connection with its obligations under this Agreement:

4.1.1 Process that Personal Data only in accordance with the Schedule, unless the Parties are required to do otherwise by Law, which should be notified to the other Parties (unless notification is prohibited by Law);

4.1.2 not Process in an irrelevant or excessive way with regard to the Agreed Purposes;

4.1.3 ensure they do not knowingly or negligently do or omit to do anything which places the Parties breach of the obligations under the Data Protection Legislation;

4.1.4 ensure that they have in place Protective Measures to protect against:

a) unauthorised or unlawful processing of Personal Data;

b) accidental loss or destruction of, or damage to, Personal Data,

and such measures to be reviewed as appropriate to protect against a Data Loss Event having taken account of the:

(i) nature of the data to be protected;

(ii) harm that might result from a Data Loss Event;

(iii) state of technological development; and

(iv) cost of implementing any measures;

4.1.5 ensure the Personal Data is kept and stored securely in accordance with Data Protection Legislation;

4.1.6 ensure that:

(i) the Staff do not process Personal Data except in accordance the Schedule;

(ii) each Party takes all reasonable steps to ensure the reliability and integrity of any Staff who have access to the Personal Data and ensure that they:

(A) are aware of and comply with the duties under this Agreement;

(B) are subject to appropriate confidentiality undertakings;

(C) are informed of the confidential nature of the Personal Data and do not publish, disclose or divulge any of the Personal Data to any third party unless permitted by this Agreement; and

(D) have undergone adequate training in the use, care, protection and

handling of the Personal Data;

4.1.7 not transfer the Personal Data outside of the UK unless the prior written consent of all Parties has been obtained and the following conditions are fulfilled:

a) the Parties have provided appropriate safeguards in relation to the transfer (whether in accordance with UK GDPR Article 46 or LED Article 37);
b) the Data Subject has enforceable rights and effective legal remedies;
c) the Parties outside the UK comply with the obligations under the Data Protection Legislation by providing an adequate level of protection to any Personal Data that is transferred (or, if it is not so bound, uses its best endeavours to assist the Parties in meeting its obligations under the Data Protection Legislation);

4.1.8 securely destroy or return the Personal Data (and any copies of it) to the Data Discloser upon termination or expiry of this Agreement unless the Parties are required by Law to retain the Personal Data; and

4.1.9 as far as is reasonably practical, anonymise or pseudonymise all Personal Data contained in statistics, reports and summaries to minimise the amount of Personal Data shared.

5. FAIR, LAWFUL AND TRANSPARENT PROCESSING

5.1 The Personal Data shall be shared in accordance with the Agreed Purposes on the basis of the legal grounds as stated in the Schedule.

5.2 The Parties undertake to inform Data Subjects of the purposes for which it will process their Personal Data and provide all of the information that it must provide in accordance with applicable laws, to ensure that the Data Subjects understand how their Personal Data will be processed by the Data Controller.

5.3 The Parties shall, in respect of the Personal Data, ensure that their privacy notices are clear and provide sufficient information to Data Subjects, in order for them to understand:

5.3.1 what Personal Data the Parties are sharing;
5.3.2 the circumstances in which it will be shared;
5.3.3 the purposes for the sharing;
5.3.4 either the identity with whom the Personal Data is shared or a description of the type of organisation that will receive the Personal Data

unless an exemption to the transparency provisions applies.

6. DATA QUALITY

6.1 The Data Discloser shall ensure that the Personal Data is accurate.

6.2 Where either Party becomes aware of inaccuracies in the Personal Data, they will notify the other Party immediately.

7. DATA SUBJECTS' RIGHTS

7.1 Data Subjects have the right to obtain certain information about the processing of their Personal Data through a Subject Access Request. Data Subjects may also request rectification, erasure or blocking of their Personal Data.

7.2 The Parties shall maintain a record of Subject Access Requests, the decisions made and any information that was exchanged. Records must include copies of the request for information, details of the data accessed and shared and where relevant, notes of any meeting, correspondence or phone calls relating to the request, together with relevant dates.

7.3 The Parties agree that the responsibility for complying with a Subject Access Request

falls to Party receiving the Subject Access Request in respect of the Personal Data held by that Party.

7.4 The Parties agree to provide reasonable and prompt assistance (within 5 business days of such a request for assistance) at their own expense as is necessary to each other to enable them to comply with Subject Access Requests and to respond to any other queries or complaints from Data Subjects.

8. DATA RETENTION AND DELETION

8.1 The Data Receiver shall not retain or process Personal Data for longer than is necessary to carry out the Agreed Purposes.

8.2 Notwithstanding Clause 8.1, the Parties shall continue to retain the Personal Data in accordance with any internal or statutory retention periods applicable in their organisations and/or industry.

8.3 The Data Receiver shall ensure that any Personal Data is returned to the Data Discloser or destroyed in the following circumstances:
(a) upon termination of the Agreement for whatever reason;
(b) upon expiry of the Term (unless extended further in accordance the terms of this Agreement); and
(c) once processing of the Personal Data is no longer necessary for the Agreed Purposes.

9. TRANSFERS

9.1 For the purposes of this Clause, transfers of Personal Data shall mean any sharing of the Personal Data by the Data Receiver with a third party, and shall include, but is not limited to, the following:
a) sharing of the Personal Data with any third party;
b) publication of the Personal Data via any medium, including, but not limited to social media, websites, publicly available communications.
c) storing Personal Data on servers outside the UK;
d) subcontracting the processing of Personal Data to data processors located outside the UK;
e) granting third parties located outside the UK access rights to the Personal Data.

9.2 The Data Receiver shall not share the Personal Data with a third party without the express written permission of the Data Discloser save as required by law or court order.

9.3 Where Personal Data is to be shared under clause **9.2, t**he Data Receiver shall not disclose or transfer the Personal Data outside the UK without first ensuring that adequate and equivalent protections will be afforded to the Personal Data.

10. SECURITY AND TRAINING

10.1 The Parties agree to implement appropriate technical and organisational measures to protect the Personal Data in their possession against unauthorised or unlawful processing and against accidental loss, destruction, damage, alteration or disclosure, including but not limited to:
a) ensuring IT equipment, including portable equipment is kept in lockable areas when unattended;
b) not leaving portable equipment containing the Personal Data unattended;
c) ensuring Staff use appropriate secure passwords for logging into systems or databases containing the Personal Data;
d) ensuring that all IT equipment is protected by antivirus software, firewalls, passwords and suitable encryption devices;
e) ensuring that any Special Category Personal Data is stored and transferred

(including where stored or transferred on portable devices or removable media) using industry standard 256-bit AES encryption or suitable equivalent;

f) limiting access to relevant databases and systems to those Staff who need to have access to the Personal Data, and ensuring that passwords are changed and updated regularly to prevent inappropriate access when individuals are no longer engaged by the Party;
g) conducting regular threat assessment or penetration testing on systems;
h) ensuring all Staff handling Personal Data have been made aware of their responsibilities with regards to handling of the Personal Data; and
i) allowing for inspections and assessments to be undertaken by the other Party in respect of the security measures taken, or producing evidence of those measures if requested.

11. PERSONAL DATA BREACHES AND REPORTING PROCEDURES

11.1 The Parties shall ensure they do not knowingly or negligently do or omit to do anything which places either Party in breach of the Data Protection Legislation.

11.2 Each Party shall inform the other immediately if it:

a) is in breach of the Protective Measures requirements;
b) receives a request to rectify, block or erase the Personal Data;
c) receives any complaint or communication relating to either Party's obligations under the Data Protection Legislation;
d) receives any communication from the Information Commissioner or any other regulatory authority in connection with the Personal Data;
e) receives a request from any third party for disclosure of the Personal Data where compliance with such request is required or purported to be required by Law; or
f) becomes aware of a Data Loss Event, and without undue delay and in any event within 24 hours, shall notify the other Parties, by:
    (i) contacting the Data Protection Officer(s) as detailed within the Schedule; and
    (ii) informing them of the Data Loss Event, including in its notification:
        (A) a description of the Data Loss Event including where possible, the categories and approximate number of Data Subjects concerned and the categories and approximate number of data records concerned; and
        (B) a description of the measures taken or proposes to take to address the Data Loss Event, including, where appropriate, measures to mitigate its possible adverse effects.

11.3 Following the notification of a Data Loss Event, the informing Party shall immediately assess the risks and consequences of the Data Loss Event and take measures, including:

(i) to mitigate the possible adverse effects of the Data Loss Event; and
(ii) to protect the data and the interests/safety of the Data Subject and/or Data Controller,

and inform the other Parties as to the measures that it has taken.

11.4 The informing Party's obligation to notify shall include the provision of further information in phases, as details become available.

12. RESOLUTION OF DISPUTES WITH DATA SUBJECTS OR THE DATA PROTECTION AUTHORITY

12.1 Taking into account the nature of the processing, the Parties shall provide each other, at their own expense, with full assistance in relation to the Personal Data and the obligations under Data Protection Legislation and any complaint, communication or request made including by promptly providing (and in any event within 24 hours of being received):

i. full details and copies of the complaint, communication or request;

ii. such assistance as is reasonably requested to enable the Parties to comply with a Data Subject Access Request within the relevant timescales set out in the Data Protection Legislation;
iii. assistance as required with respect to any request from the Information Commissioner's Office, or any consultation by the Parties with the Information Commissioner's Office;
iv. any Personal Data it holds in relation to a Data Subject (as appropriate) within the timescales required by the Council; and
v. each other Party with any information requested in relation to the request.

13. RECORDS

13.1 The Parties shall maintain complete and accurate records and information to demonstrate its compliance with Data Protection Legislation.

13.2 The Parties may reasonably request information from each to satisfy itself that obligations under the Data Protection Legislation are being met in relation to the Personal Data.

Sub-processing

13.3 Before allowing any Sub-processor to process any Personal Data related to this Agreement, the Parties must:
a) notify the other Parties in writing of the intended Sub-processor and processing;
b) obtain the written consent of the Parties;
c) enter into a written agreement with the Sub-processor which gives effect to the terms set out in this Condition such that they apply to the Sub-processor; and
d) provide the Parties with such information regarding the Sub-processor as the Parties may reasonably require.

13.4 The appointing Party shall remain fully liable for all acts or omissions of any Sub-processor.

14. WARRANTIES

14.1 Each Party warrants and undertakes that it will:
(a) Process the Personal Data in compliance with all applicable laws, enactments, regulations, orders, standards and other similar instruments that apply;
(b) respond to Subject Access Requests in accordance with the terms of this Agreement and in accordance with the DPA 2018/UK GDPR;
(c) make available upon request to the Data Subjects a copy of this Agreement, unless the Agreement contains confidential information;
(d) respond within a reasonable time and as far as reasonably possible to enquiries from the relevant Data Protection Authority in relation to the Personal Data;
(e) where applicable, maintain registration with all relevant Data Protection Authorities to process the Personal Data for the Agreed Purpose; and
(f) take all appropriate steps to ensure compliance with the security measures set out in Clause 10.

14.2 The Data Discloser shall ensure that the Personal Data is accurate.

14.3 The Parties agree to take account of any guidance issued by the Information Commissioner's Office. The Council may on not less than 30 Working Days' notice to the Parties to amend this Agreement to ensure that it complies with any guidance.

14.4 Each Party shall be responsible for their own costs incurred in complying with this Agreement.

15. TERM AND TERMINATION

15.1 This Agreement shall commence on and shall continue in for the duration detailed in

the Schedule.

15.2 The Agreement shall automatically terminate on expiry of the Term unless, following a review of the terms of the Agreement, the Parties agree to extend the Agreement.

15.3 Any such renewal shall be in writing signed by an authorised signatory of all Parties and the Parties shall seek to agree any such renewal at least **2** months in advance of the expiry of the Term.

15.4 The provisions of this Agreement shall apply during the continuance of the Agreement and indefinitely after its expiry or termination.

16. ROLES AND RESPONSIBILITIES

16.1 Each Party shall nominate a single point of contact within their organisation who may be contacted in respect of queries or complaints regarding DPA 2018/UK GDPR and/or compliance under the terms of this Agreement, as detailed within the Schedule.

17. THIRD PARTY RIGHTS

17.1 No one other than a Party to this Agreement shall have any right to enforce any of its terms.

18. VARIATION

18.1 No variation of this Agreement shall be effective unless it is in writing and signed by the Parties (or their authorised representatives).

19. WAIVER

19.1 No failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

20. SEVERANCE

20.1 If any provision of this Agreement (or part of any provision) is found by any court or other authority of competent jurisdiction to be invalid, illegal or unenforceable, that provision or part-provision shall, to the extent required, be deemed not to form part of this Agreement, and the validity and enforceability of the other provisions of this Agreement shall not be affected.

20.2 If a provision of this Agreement (or part of any provision) is found to be illegal, invalid or unenforceable, the provision shall apply with the minimum modification necessary to make it legal, valid and enforceable.

21 CHANGES TO THE APPLICABLE LAW

21.1 In case the applicable data protection and ancillary laws change in a way that the Agreement is no longer adequate for the purpose of governing lawful data sharing exercises, the Parties agree that they will negotiate in good faith to review the Agreement in light of the new legislation.

22 ENTIRE AGREEMENT

22.1 This Agreement constitutes the entire agreement between the Parties in relation to its subject matter, namely the sharing of data included in Schedule 1 of the Agreement,

and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

23 FORCE MAJEURE

23.1 Neither Party shall be in breach of this Agreement nor liable for delay in performing, or failure to perform, any of its obligations under this Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the affected party shall be entitled to a reasonable extension of the time for performing such obligations. If the period of delay or non-performance continues for 3 months, the Party not affected may terminate this Agreement by giving 30 days' written notice to the affected Party.

24 NOTICE

24.1 Any notice required to be given under this Agreement shall be in writing and shall be delivered personally or sent by pre-paid first-class post, recorded delivery or by commercial courier to the other Party as set out in the Schedule.

25 GOVERNING LAW AND JURISDICTION

25.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

26 COUNTERPARTS

26.1 This Agreement may be executed in any number of counterparts, each of which when executed and delivered shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement. No counterpart shall be effective until each Party has executed and delivered at least one counterpart.

27 GOOD FAITH

27.1 The Parties shall act and deal in good faith towards each other in respect of all matters the subject of this Agreement.

28 HUMAN RIGHTS ACT

28.1 Article 8 of the European Convention on Human Rights states that everyone has the right to respect for his private and family life, home and correspondence and that there shall be no interference by a public authority with that right. In exercising their obligations under this Agreement the parties will at all times comply with the Human Rights Act 1998.

29 CONSIDERATION

29.1 The parties intend this Agreement to be legally binding and the consideration is the mutual obligations of the parties under this Agreement.

This has been entered into on the date stated at the beginning of it.

SIGNED ON BEHALF of)
THE COUNCIL by:)



.....
A duly authorised officer

EVE STICKLER
.....
Name (block capitals)

SIGNED ON BEHALF of)
MOPAC **by:)**

.....
Head of Evidence and Insight, MOPAC

Paul Dawson
.....
Name (block capitals)

SIGNED ON BEHALF of)
MOPAC **by:)**

[redacted]

.....
Head of Strategic Finance and Resource Management, MOPAC

ELLIOTT BALL
.....
Name (block capitals)

Schedule 1

Processing, Personal Data and Data Subjects

1. This Schedule lists the responsibilities and processing of the Parties under this Agreement

2. The Parties shall consider and comply with any further written instructions with respect to the processing by either Party under this Agreement.

3. Any such further instructions shall be incorporated into this Schedule.

Description	Details
Data Protection Officer contact details (for each Party)	**Council** Andrew Maughan dpo@camden.gov.uk **MOPAC**: Data.Protection@london.gov.uk
Subject matter of the processing	The data will be case level data collated from all London boroughs for any child who is sent to youth custody (both sentenced and remanded). Data will include name, age, ethnicity, home local authority, prison establishment, offence data, health data, education information and types of accommodation. Please see Schedule 2 for a full list. Asset plus data will also be collated for up to 16 individuals (Schedule 3) and 10 Outcome star's will be analysed from Spark Inside outlining the progress made during childrens' 1:1 coaching sessions. This will be anonymised.
Duration of the processing (for each Controller's activities)	March 2020 – March 2023 (possible extension to March 2024 pending) The start date is determined by the time the YJB state on their grant agreement. We have spent the last 12 months confirming our requirements with stakeholders and setting up the project. We have not yet collected any data and have requested a project extension to allow for this time loss.
Nature and purposes of the processing	The data is case level data for all London children (aged 10-18 years) who are remanded or sentenced to youth custody. Schedule 2 lists all categories of data requested from youth offending services. In addition to this data, LB Camden will request up to 16 completed Asset Plus assessments (see schedule 3) from across the 32 London Boroughs. Spark Inside will provide the LRP with outcome stars monitoring the progress made by 10 children on their 1:1 life coaching sessions (Schedule 4). All data sets will be shared with MOPAC for the evaluation of the London Resettlement Partnership. Names and email addresses of key partners will be shared with MOPAC to enable stakeholders to be interviewed about their experience of work of the LRP, its development and impact to date. This data will be used to monitor the progress made by each of the children on the cohort and of the LRP's development to achieve its objectives. Specifically, how the London Resettlement Partnership has impacted on the resettlement outcomes for children across a range of measures relating to the objectives of the project: • Define constructive resettlement principles and ascertain how this can work in practice in developing an enhanced constructive resettlement offer. • Identify clear pathways to Release on Temporary Licence (ROTL) (to include ROTL clinics) • Improve education, training and employment outcomes • Develop a pan London accommodation protocol

	• Work with NHS England and partners to define ways of securing continuity of health pathways from custody to community • Address disproportionality and its impact on pathways to resettlement. • Support local practice networks of resettlement case workers to define improvements and raise strategic issues • Develop a body of effective practice and materials for dissemination nationally to YOTs and other agencies.
Legal Basis for sharing and Privacy notice requirements	**Personal data: Article 6(1) (c)** legal duty and **6(1)(e)** processing is necessary for the performance of a task carried out in the public interest **.** The Crime and Disorder Act 1998 gives each LA in England & Wales has the responsibility to formulate a strategy to reduce crime and disorder in their area and to work with police authorities to do this. Section 115 of the Act gives partners the power to share information for the purpose of reducing crime and disorder. Schedule 9 (5) of the Police and Justice Act strengthens this by introducing a new duty on the same agencies. The Children Act 1989 Under S.47 of the Children's Act 1989, a Local Authority has a duty to investigate when informed that a child in their area is in police protection or the subject of a protection order. The Children Act 2004, as amended by the Children and Social Work Act 2017, places duties on key agencies in a local area. Specifically, the police, clinical commissioning groups and the local authority are under a duty to make arrangements to work together, and with other partners locally, to safeguard and promote the welfare of all children in their area. The Statutory Guidance - Working Together to Safeguard Children (2018) and Information Sharing – Advice to Practitioners providing safeguarding services to Children, Young People, Parents, and Carers (July 2018) emphasise the need to share appropriately. **Special Category Data: Art 9(g)** Reasons of substantial public interest (with a basis in law) and **(h)** Health or social care (with a basis in law). For art 9(g) the Data Protection Act 2018 Schedule 1 Part 2 conditions are para 6 6 (Statutory and government purposes) and para 18 (Safeguarding of children and of individuals at risk) with the underlying law being that identified in art 6 above; and for art 9(h) the Data Protection Act 2018 Schedule 1 Part 1 condition is (2)(2)(e) Health or social care purposes, the provision of social care. The underlying law is the same as for art 6. Criminal Offence Data the processing complies with Art 10, the art 6 condition is as noted above and the Data Protection Act 2018 Schedule 1 conditions are as noted above.
Responsibilities Allocated to each Party	1. Schedule 2: the case level data listed within this schedule will be processed jointly by both parties 2. Schedule 3: Asset Plus data will be processed solely by the other party as data controller 3. Schedule 4: the outcome stars will be processed jointly by both parties. 4. Data relating to names and email addresses of key stakeholders will be processed jointly by both parties.
Categories of Data Subject	Children: the data will include all children who are from the 32 London Borough's who are sentenced or remanded to youth custody. These children can age between 10-18 years.

	Professionals: contact details of key stakeholders working with the LRP will be shared with MOPAC to enable qualitative interviews to take place. This will include names and email addresses and will be undertaken with the owners permission.
Plan for return and destruction UNLESS requirement under law to preserve data	Any data collated on the children will be retained in accordance with the DPIA for the London Resettlement Partnership and LB Camden's retention and disposals policy: • R19.2 Youth Offending Service [Retain until 25th Birthday (unless also SEN, LAC, CP] in the first instance. • R28 Looked after Children and Care Leavers [Retain until DOB+ 75 years) in the first instance. For e.g. If the child is also engaged with both above, then the LAC retention period (R28) would override R19.2 for their individual record.

Schedule 2

List of case level data gathered by the Youth Offending Services and shared with LB Camden as joint data owners. This data will be shared with MOPAC for evaluation purposes.

Data collated for children remanded to custody

Data to be collated whilst the child is in custody
Data to be collated upon release (if applicable)

Name or identifying code
Date of birth
Current custodial establishment?
Date remanded in to custody?
Is the child of statutory school age at time of sentencing?
Gender
Ethnicity
Home local authority area
Has the child had an NRM- reasonable/ conclusive grounds?
Are they a Looked After Child?
Have any Special Educational Needs or Disabilities been identified?
Does the child have any special education needs or disabilities?
Does the child have an Education, Health and Care Plan?
Type of education, training or employment (ETE) immediately prior to custody?
Was the child attending their ETE provision?
Type of accommodation prior to custody?
Suitability of accommodation prior to custody?
Suitability of accommodation (personal judgement of Case Manager)?
Does the child have links with family?
Have they had contact with their family in custody? (e.g., physical visits, purple visits etc)
Is the child a parent?
Was the child registered with a GP prior to custody?
Does the child have any physical health needs?
Is the child being supported with any physical health needs?
Does the child have any mental health needs? (e.g., this may include a diagnosed condition such as bipolar or depression or if the child requires support for other undiagnosed conditions such as stress or anxiety.)
Is the child being supported with any mental health needs / receiving support from professionals?
Has the child experienced alcohol misuse?
Is the child being supported with any alcohol misuse needs / receiving support from professionals?
Has the child experienced drug misuse?
Is the child being supported with any drug misuse needs / receiving support from professionals?
Have any specialist community workers visited the child for 1:1 work (e.g. substance misuse workers, psychologists, CAMHS, youth worker, mentor, social worker, ETE worker etc).

If the child is released, is there a confirmed accommodation placement for them?
If the child is released, is there a confirmed ETE placement for them?
Is there a release plan for the child in the event that they are released?
Transferred to adult estate?
Date transferred to adult estate?
Date child receives a custodial sentence
Date of release from custody.
Reason for release? E.g., acquitted, received YRO or RO etc
If acquitted did the YOT continue with any engagement with the child post release?
Full information on custody work received by YOS? (e.g., education, health etc)
If released out of Borough please state where they were released to
Type of accommodation on day of release?
Suitability of accommodation upon release?
Suitability of accommodation (personal judgement of Case Manager)
Was the child registered with a GP on release?
Are continuity of care plans in place from healthcare in the secure setting to healthcare in the community
Was there any planning to address any health needs following release from custody?
Did the child attend an ETE placement within the first two weeks of their release?
Has the EHCP transferred from secure setting to community?
Has the EHCP been reviewed following release from custody?
Returned to custody for any reason?
If returned to custody for new offence, please state the offence.
If returned to custody for new offence, please state the gravity score of most serious offence?
Number of offences leading to conviction? (these are new offences since release from custody)
If statutory support was not required by the YOS following release from custody was support being provided by another organisation? (this may include both statutory and non-statutory organisations)

Data collated for children sentenced to custody

Data to be collated whilst the child is in custody
Data to be collated during the licence
Data to be collated at the end of the licence

Name or identifying code
Date of birth
Current custodial establishment?
Is the child of statutory school age at time of sentencing?
Gender
Ethnicity
Home local authority area
Transferred to National Probation Service whilst in custody?

Date transfer completed to National Probation Service?
Has the child had an NRM- reasonable/ conclusive grounds?
Date sentenced
Type of court (youth/adult)
Was the child sentenced with an adult?
Type of order?
Length of sentence?
Number of previous convictions?
Offence(s) that led to conviction?
Gravity score of most serious current offence?
Returned to custody for breach of licence?
Earliest date of release?
Are they a Looked After Child?
Have any Special Educational Needs or Disabilities been identified?
Does the child have any special education needs or disabilities?
Does the child have an Education, Health and Care Plan?
Type of education, training or employment (ETE) immediately prior to custody?
Was the child attending their ETE provision?
Type of accommodation immediately prior to custody?
Suitability of accommodation prior to custody?
Suitability of accommodation (personal judgement of Case Manager)?
Release On Temporary Licence (ROTL)/Mobility eligibility date?
Has the child undertaken ROTL/Mobility?
Purpose(s) of ROTL (e.g. resettlement clinic, work taster, college placement, visiting accommodation, visiting YOS, enrichment activity etc)
Number of ROTL/Mobility occurrences?
Does the child have links with family?
Have they had any contact with their family in custody? (this may include physical visits, purple visits etc)
Is the child a parent?
Has any restorative justice work been undertaken in custody?
Was the child registered with a GP prior to custody?
Does the child have any physical health needs?
Is the child being supported with any physical health needs?
Does the child have any mental health needs? (e.g., this may include a diagnosed condition such as bipolar or depression or if the child requires support for other undiagnosed conditions such as stress or anxiety.)
Is the child being supported with any mental health needs / receiving support from professionals?
Has the child experienced alcohol misuse?
Is the child being supported with any alcohol misuse needs / receiving support from professionals?
Has the child experienced drug misuse?
Is the child being supported with any drug misuse needs / receiving support from professionals?
Have any specialist community workers visited the child for 1:1 work prior to release from custody (e.g. substance misuse workers, psychologists, CAMHS, youth worker, mentor, social worker, ETE worker etc).
Have the YOS attended sentence planning/review meetings? (includes virtual)
Has resettlement planning included contingency plans.

Did the first identified accommodation placement planned for release breakdown and did an alternative need to be sought for release?
Date final accommodation placement confirmed for release?
Was any ETE confirmed prior to release?
Type of ETE confirmed for release?
If ETE was unable to be confirmed prior to release, please state the reason for this? (e.g., plans made to complete application on release, no suitable provision, application rejected by provider, child refuses to attend etc)
Transferred to adult estate?
Date transferred to adult estate?
If transferring to the adult estate, was a named OMiC worker identified?
Actual date of release
Full information on custody work received by YOS? (e.g., education, interventions, health)
If released out of Borough please state where they were released to e.g., Brighton
Type of accommodation on day of release?
Suitability of accommodation upon release?
Suitability of accommodation (personal judgement of Case Manager)
If they moved during their licence, please list all accommodation types attended during their licence period.
Was the child registered with a GP on release?
Are continuity of care plans in place from healthcare in the secure setting to healthcare in the community
Is the child being supported with any physical health needs / receiving support from professionals during the licence?
Is the child being supported with any mental health needs / receiving support from professionals during the licence?
Is the child being supported with any alcohol misuse needs / receiving support form professionals during the licence?
Is the child being supported with any drug misuse needs / receiving support form professionals during the licence?
Did the child attend an ETE placement within the first two weeks of their release?
Please list all types of ETE attended during the licence?
Has the EHCP transferred from secure setting to community?
Has the EHCP been reviewed following release from custody?
Has any restorative justice work been undertaken during the licence period?
Did the child breach their licence? (this includes non-compliance or new conviction).
Outcome of first breach
Returned to custody for any reason?
If returned to custody for new offence, please state the offence.
If returned to custody for new offence please state the gravity score of most serious offence?
Number of offences leading to conviction? (these are new offences since release from custody)
Licence end date
Type of accommodation at end of licence?
Suitability of accommodation at end of licence?
Suitability of accommodation (personal judgement of Case Manager)?
ETE at end of licence?
Is the child attending their ETE provision at the end of their licence?

If the child did not undertake ETE during the licence, please state the reason for this? (e.g., no suitable provision, application(s) rejected by provider, child refuses to attend etc)
Transferred to NPS at any point?
Date transferred to NPS?
At the end of the licence was an exit plan in place for when the YOT no longer supervises the child? (this may include action planning with non-statutory agencies and support mechanisms for child clearly identified and signposted).

Schedule 3

Asset Plus Contents

Section 1: Core Record

Summarises information from the rest of the framework and the wider case management system, including:

- personal information
- parent/carer details
- current and previous offending or anti-social behaviour
- risk of harm, serious risk of harm and risk to the young person
- record of contact with other services
- details of the young person's personal circumstances
- summary of key actions from the intervention plan

Section 2: Information Gathering

Collects information to explain the young person's situation or behaviour, including:

- Personal, Family and Social Factors
    - living arrangements and environmental factors
    - parenting, family and relationships
    - young person development
    - learning, Education, training and employment
- Offending/anti-social Behaviour
    - current offending
    - patterns and attitudes
    - other behaviours of concern
- Foundations for Change
    - resilience, goals and attitudes
    - opportunities
    - engagement and participation
    - factors affecting desistance
- Self-assessment
    - questionnaires for young person and parents/carers

Section 3: Explanations and Conclusions

Practitioners will pull together and analyse elements of the Information Gathering section to make judgements about the young person in four main areas:

1. explaining offending behaviour patterns and trends based on the young person's individual context
2. considering potential future behaviour, its likelihood and impact

3. use 1 and 2 alongside an indicative rating of reoffending to determine the likelihood of reoffending rating and Risk of Serious Harm rating
4. making a professional judgement about the likelihood and impact of adverse outcomes in relation to the young person's safety and well-being

Section 4: Pathways and Planning

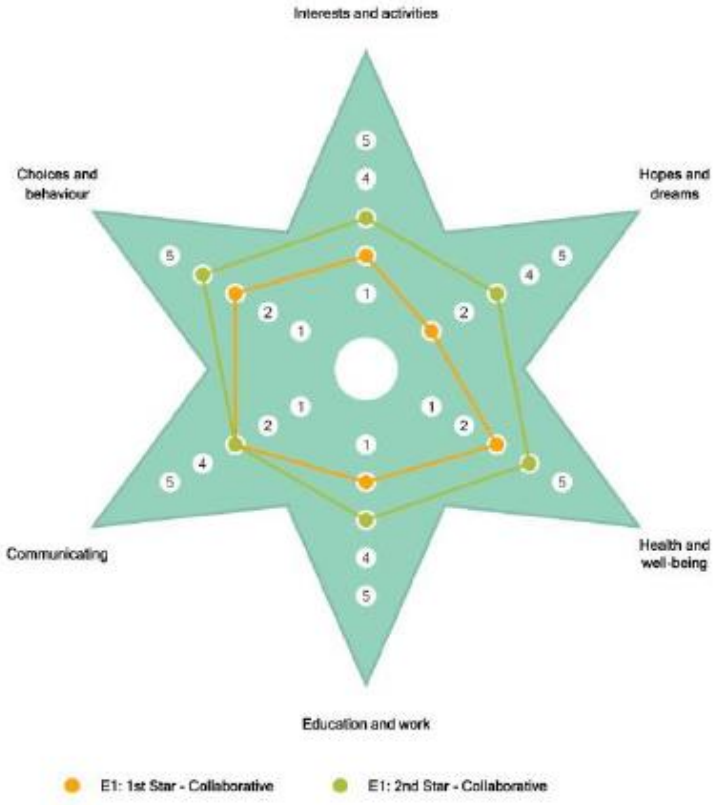
Supports practitioners to identify outcomes and plans that link to risks and positive factors identified in the Explanations and Conclusions section:

- outlines judgements made in the assessment alongside an indicative Scaled Approach Intervention Level
- frames the young person's intervention plan around what can or needs to be done to deliver 5 key outcomes:
    - repairing the harm (Restorative Justice)
    - not reoffending
    - not hurting others
    - goals and life opportunities
    - safety and well-being
- outlines targets and actions that will seek to deliver the intended outcomes
- highlights areas where there is a need for referral and gives consideration to engagement, risk, safety management and changing circumstances

Schedule 4

Sample Spark inside Outcome Star

CURRIE-T-HJ-HDN-APR-23



1st Star: 27.4.23

2nd Star: 19.7.23